HEADNOTE

"1. The purpose of R. 190 RoP is to ensure effective judicial protection by enabling access to specified evidence that is not readily accessible to the party bearing the burden of proof. An order under R. 190 RoP requires reasonably available evidence supporting the plausibility of the claim and is subject to the cumulative requirements of specificity, necessity and proportionality. R. 190 RoP does not permit fishing expeditions.

2. Under R. 190 RoP, the assessment of whether the production of specific evidence is justified by the requirements of necessity and proportionality falls, in principle, within the margin of discretion of the Court of First Instance. The Court of Appeal will interfere with that assessment only in the event of an error of law, a manifest error of assessment, or a failure properly to apply the limits inherent in R. 190 RoP.

3. The fact that a party considers the evidence already available sufficient to support its allegations does not preclude it from seeking access to additional evidence under R. 190 RoP if that party has a legitimate interest in the additional evidence (as in case when the adverse party argues that the fact to be proven can only be established by means of additional evidence). R. 190 RoP requires that the applicant has already presented reasonably available evidence supporting the plausibility of its claim.

4. Neither Art. 59 UPCA nor R. 190 RoP requires an application for the production of evidence to be lodged together with the Statement of claim. Whether such an application has been made in a timely manner must be assessed having regard to the state of the proceedings and to the procedural developments that have occurred at the time the request is filed.

5. New factual allegations and supporting evidence relied upon for the first time on appeal may be disregarded where no justification is provided for their late introduction as required by R. 222.2 RoP.

6. A conditional appeal is inadmissible where it makes consideration of the appeal dependent upon a prior determination by the Court of Appeal whether evidence not yet produced and tested will ultimately be sufficient for the

> *purposes of the claim in the main proceedings. Whether such evidence is sufficient to establish the claim is a matter for the court deciding the merits of the case and therefore lies outside the scope of the appeal.*
> *7. Upon service of the decision or of the order determining the appeal, a suspensive effect granted pending determination of that appeal ceases to operate. Any subsequent issues relating to the enforcement of the order of the Court of First Instance are to be assessed by the judge-rapporteur of that Court in light of the circumstances then existing."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Procedural order

PATENT
EP 2 791 402

ULTRA-HIGH MOLECULAR WEIGHT POLYETHYLENE MULTIFILAMENT YARN

KEYWORDS
Order to produce evidence
new submission before the Court of Appeal
conditional appeal
suspensive effect

Rule 190 Order to produce evidence

SUMMARY
The Court of Appeal in Luxembourg issued a procedural order. The patent at issue relates to ultra-high molecular weight polyethylene multifilament yarn. According to the headnotes of the decision, Rule 190 of the Rules of Procedure serves to protect parties' rights by granting access to evidence they cannot easily obtain themselves, provided the request meets strict requirements of specificity, necessity, and proportionality, and does not amount to a fishing expedition. The Court of First Instance has discretionary power to assess whether producing specific evidence satisfies the necessity and proportionality requirements, and the Court of Appeal will intervene only if the lower court commits an error of law, a manifest error of assessment, or fails to respect the limits built into Rule 190. A party may request additional evidence under Rule 190 even if it believes existing evidence is sufficient, as long as it has presented reasonably available evidence supporting its claim's plausibility and has a legitimate reason to seek more. Neither Article 59 of the UPC Agreement nor Rule 190 requires evidence applications to be filed with the Statement of Claim, and timeliness is assessed by reference to the procedural stage and developments at the time of filing. New factual allegations and evidence introduced for the first time on appeal will be disregarded unless the party provides a justified reason for the late introduction as required by the Rules of Procedure. A conditional appeal is inadmissible when it requires the Court of Appeal to determine whether evidence not yet produced will suffice for the main claim, since only the court deciding the merits may assess the sufficiency of evidence. Upon service of the decision or order determining an appeal, any suspensive effect granted during the appeal process terminates, and subsequent enforcement issues are handled by the judge-rapporteur of the Court of First Instance based on the circumstances at that time.